

25STCV24260 25STCV24260

County: los-angeles

Division: Civil Law and Motion

Department: 415

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Case Number: 25STCV24260 Hearing Date: August 6, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

August 6, 2026

CASE NUMBER

25STCV24260

MOTIONS

Demurrers to Complaint

MOVING PARTIES

Defendants JPMorgan Chase Bank, N.A. and First Citizens
Bank

OPPOSING PARTY

Plaintiff Jimmy Hustin Frederickson

MOTION

Defendants JPMorgan

Chase Bank, N.A. and First Citizens Bank ("Defendants") have filed separate demurrers to the complaint filed by Plaintiff Jimmy Hustin Frederickson ("Plaintiff"). In his complaint,

Plaintiff seeks damages from defendants for their alleged violation of Probate Code sections 4300 and 4306, breach of contract, and conversion. Defendants essentially argue the Court in *In re: Peter R. Fleischner Living Trust*, Dated November 3, 2024 (Super. Ct. L.A. County, 2025, No. 25STPB03656) resolved the issues Plaintiff raises in the complaint.

The Court is

concerned this matter belongs in the Probate Division. (See Prob. Code, §§ 7050 ["The superior court has jurisdiction of proceedings under [the Probate Code] concerning the administration of the decedent's estate"], 17000 [specifies the exclusive and concurrent jurisdiction of proceedings in probate court]; Super. Ct. L.A. County, Local Rules, rule 4.1 ["The rules of this Chapter ("Probate Division Rules") apply to actions and proceedings in which the Probate Code applies and do not apply to any other action or proceeding"].) For example, why would any claimed ownership rights Plaintiff may have to disputed accounts and funds addressed and handled in a probate court proceeding not be a claim to property over which a probate court would have exclusive jurisdiction? Moreover, as indicated above, several statutory provisions in the Probate Code are hugely implicated by Plaintiff's claims in this action, which would make the probate court the proper place to address them.

For these and

other reasons, in its April 23, 2026 order, the Court scheduled an order to show cause why the Court should not facilitate transfer of this matter to the Probate Division and directed the parties to file no later than 10 court days prior to the hearing responsive briefs limited to the issue of whether this matter belongs in the Probate Division.

On July 23, 2026, Defendants

timely filed a joint brief in response to this Court's order in which they argue, among other things, "transfer would delay adjudication by requiring reassignment and potentially lead to duplicative motion practice." (Defendants' Joint Brief in Response to OSC re: Transfer to Probate Division, p. 5.)^[1] The Court concludes any delay would be minimal. Furthermore, the potential for duplicative motion practice exists regardless of transfer. Tellingly, Defendants also contend in their

demurrers this action duplicates the probate action and the probate court has complete and exclusive jurisdiction over the estate at issue.

Accordingly, the Court intends to facilitate the transfer of this matter to the Probate Division and places the demurrers off calendar, pending such transfer taking place.

Defendants are ordered to provide notice of the Court's ruling and to file proof of service of same.

[1]Plaintiff, on the other hand, did not file a brief until July 30, 2026 in which he primarily insists the instant matter lies outside the jurisdiction of the Probate Division.